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Detention Hearing Transcript and Detention Order

United States District Court for the Middle District of North Carolina United States v. Mateo Serrano Criminal Action No. SYN-MDNC-25-CR-0328 Docket Entry 10 November 7, 2025

THE COURT: The court calls the government's request for detention. Mateo Serrano is present with Celia Arden. Bram Ives appears for the fictional United States. Yesterday's temporary custody expires with this determination. The indictment remains an accusation, and the court will not use this hearing to decide guilt or a sentencing role.

IVES: The government will proceed by a safe factual proffer. It relies on the charged financial nature of the offense, the alleged five-person agreement, and the need to protect the integrity of witness contact. It does not allege violence, threat, or obstruction.

ARDEN: Serrano seeks release on conditions. He has appeared promptly, has stable fictional community ties, and agrees to restrictions on case-related contact. The government has not shown that no combination of conditions will reasonably assure appearance and community safety.

THE COURT: I will hear each proffer, then state findings and a written order.

Government Proffer

IVES: The indictment alleges a conspiracy involving \$186,400 in false reimbursement claims and exactly five participants. Serrano allegedly communicated with the other participants during the charged period. The government asks the court to prevent discussion of witness accounts or records among them while the case is pending.

The government does not present evidence that Serrano attempted to flee, ignored process, threatened anyone, destroyed records, or violated a prior court order. It acknowledges that the charged conduct ended November 2 and that the complaint contains no allegation of ongoing activity. Its concern is prospective coordination if contact remains unrestricted.

The government proposes, as an alternative to detention, travel limits, regular reporting, prompt notice of changes, attendance at all court proceedings, and a no-contact condition concerning the facts of the case. It does not request electronic-monitoring detail in this public synthetic record.

THE COURT: Does the government identify a financial condition Serrano cannot meet?

IVES: No. The government agrees that a financial condition should not cause detention merely because of inability to pay.

Defense Proffer

ARDEN: Serrano has complied with every instruction since learning of the investigation. He appeared promptly after process was executed, provided no false identity, and has remained available to counsel. His work and community ties can be verified without placing private names or addresses in the public record.

He agrees not to contact Alina Pared, Corin Bell, Darius Venn, Nessa Holt, or any cooperative witness about the allegations, directly or through another person. Ordinary accidental contact will be reported to counsel. He will not seek nonpublic cooperative records or ask another person to alter or withhold a record.

Serrano will remain within the Middle District of North Carolina unless the court approves travel, report as directed to the fictional pretrial office, attend all proceedings, and notify that office and Arden before a material change. He asks for release on recognizance rather than a secured bond.

THE COURT: Has Serrano discussed the proposed conditions with you?

ARDEN: Yes. He understands each one and is prepared to follow them.

Defendant's Acknowledgment

THE COURT: Mr. Serrano, you are not required to testify about the charge. I will ask only whether you understand the proposed conditions. Have you discussed them with Arden?

THE DEFENDANT: Yes.

THE COURT: Will you attend every proceeding and remain in the district unless you receive permission to travel?

THE DEFENDANT: Yes.

THE COURT: Will you avoid discussing the case with Pared, Bell, Venn, Holt, and identified cooperative witnesses?

THE DEFENDANT: Yes.

THE COURT: Will you preserve records in your possession and avoid asking anyone to change or destroy information?

THE DEFENDANT: Yes.

THE COURT: Do you understand that a violation can lead to arrest, revocation, or another charge, while compliance does not require you to admit guilt?

THE DEFENDANT: I understand.

THE COURT: The answers concern conditions only. They are not admissions to Count One and do not resolve the alleged participant relationships.

Appearance Analysis

The court considers the nature of the charge, the available proffers, Serrano's history and characteristics at a nonprivate level, and the record of compliance. The charged financial offense is serious, but the government identifies no failed appearance, false identity, flight attempt, or access to a real resource facilitating flight.

Serrano appeared promptly, is represented, and accepts meaningful conditions. The fictional community and work ties described by Arden support a finding that appearance can be reasonably assured. A travel boundary, reporting duty, and advance notice of changes provide additional assurance without requiring a financial condition.

The court does not treat the \$186,400 allegation as proof that Serrano possesses funds or means to flee. Nor does the five-participant allegation establish leadership or access to another person's resources. The government bears the relevant burden at this stage, and the court finds that carefully defined release conditions reasonably address the appearance concern.

This analysis is not a sentence prediction. It depends on the detention record and does not bind a later judge evaluating guilt, restitution, advisory calculations, or any plea.

Safety and Integrity Analysis

The government alleges no violence, threatened harm, weapon, or intimidation. Its legitimate concern is integrity of witnesses and records. The charged period has ended, and no ongoing false-claim activity is alleged. The court can address the identified concern through no-contact, preservation, and supervision conditions.

Serrano shall not discuss the allegations with the four other named participants or with a cooperative witness known to him, except in the presence of counsel and with prior court authorization. He shall not direct another person to make such contact. He shall preserve existing fictional case records and shall not seek confidential cooperative material outside discovery.

These restrictions do not bar communication with Arden, lawful review of discovery, or ordinary contact unrelated to the case that is promptly disclosed if accidental. They contain no monitoring method, device instruction, account restriction, or real-world operational detail. The court finds the conditions adequate to address the nonviolent safety and integrity concerns presented.

Because conditions suffice, the government has not established that detention is required. The temporary custody order will end after processing of the written release conditions.

Conditions of Release

Serrano is released on personal recognizance subject to these conditions: he shall appear as directed; remain within the district absent written permission; report to the fictional pretrial office on the schedule it provides; advise that office and Arden before a material change; avoid new criminal conduct; preserve case-related records; and obey the no-contact provision stated above.

He shall not obtain a passport or other travel document for this fictional exercise. No real document is surrendered, and no private identifying number is recorded. He shall not possess a weapon while on release. The court imposes no secured bond, electronic-monitoring mechanism, or condition requiring payment.

The pretrial office may remind Serrano of deadlines and report material noncompliance to counsel and the court. It may not expand the conditions on its own. Any modification requires a judicial order after appropriate notice. Counsel shall receive a clean copy before Serrano leaves fictional custody.

Serrano's agreement to these conditions is not a guilty plea. The indictment remains contested, and every trial right is preserved. Compliance may not be described as an admission of the offense or of a managerial role.

Order and Notice

The government's request for detention is denied because conditions can reasonably assure appearance and protect the integrity interests identified in the proffer. Serrano shall be released after signing the conditions acknowledgment. Yesterday's temporary custody order is dissolved upon that release.

Serrano is warned that deliberate violation may result in revocation, detention, or other lawful consequences. If a condition becomes impracticable, Arden shall seek modification rather than advising noncompliance. Ives shall provide prompt notice of any alleged violation and disclose the factual basis sufficiently for a response.

The clerk shall enter this transcript and order publicly because it contains no presentence report, private address, or real identifier. A separate administrative copy may record fictional reporting logistics without becoming a public source document. Nothing in this order predicts a plea, Guidelines calculation, sentence, or appeal.

SO ORDERED this 7th day of November, 2025.

Mira Lorne Fictional United States Magistrate Judge